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Counterfactual Mandate-Stay Response: Denial Path

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Filed July 28, 2026

Blue Ember opposes Granite Heron’s motion to stay mandate. Blue Ember has decided not to file a petition for a writ of certiorari from the branch judgment and has not authorized Granite Heron to seek delay on its behalf. The movant prevailed when this Court affirmed the mitigation JMOL and \$2,700,000 amended judgment, so it identifies no adverse appellate ruling that it intends to challenge.

Rule 41(d)(2) requires a substantial certiorari question and good cause. A possibility that the losing party might petition cannot satisfy that standard after the losing party disclaims any such plan. Nor can ordinary consequences of a monetary judgment establish good cause without a concrete irreparable injury or meaningful security proposal.

The rehearing period expired July 23, and the schedule before the stay motion placed mandate on July 30. Blue Ember asks the Court to deny the motion promptly and shorten Rule 41(b)’s post-denial interval so issuance occurs on that date. Denial would not reconsider the merits or add a disposition component.

This response addresses only the denial-path motion on the segregated docket. It does not describe any event from the actual appeal or from another counterfactual route.

No substantial petition has been identified

Granite Heron describes a possible question about Rule 50 sufficiency, but it does not propose to present that question itself. The branch opinion accepted Granite Heron's argument that the preserved Cobalt Finch evidence compelled a \$1,500,000 net deduction. The amended judgment therefore remained \$2,700,000, exactly as Granite Heron requested in its response brief.

Blue Ember could have argued that unresolved qualification, downstream timing, and risk allowed the jury's smaller deduction. It made those arguments and lost. After reviewing the judgment and available procedures, Blue Ember elects not to petition. That decision removes the factual premise on which Granite Heron bases its requested stay.

Rule 41(d)(2)(A) asks for more than an abstract federal issue. The motion must connect a substantial question to a petition that will actually be filed or is genuinely contemplated. Granite Heron supplies neither a draft question it has standing to raise nor a declaration from Blue Ember. Its request would convert the certiorari period into an automatic mandate delay, contrary to the rule's requirement of a particular showing.

The Court need not decide whether a nonpetitioning party could ever move in support of another party's announced petition. Here no petitioning party exists. The motion fails at the threshold.

Ordinary monetary administration is not good cause

Granite Heron points to possible district enforcement, interest calculations, security, and restitution. Those are conventional incidents of an affirmed money judgment. Payment or the need to post security generally can be remedied through money and district procedures; the motion identifies no unique property, confidential material, or irreversible operational event.

The company offers only to discuss security. It has not tendered a bond, fixed an amount, provided a solvent guarantor, or explained why normal enforcement would be inequitable. Blue Ember, the judgment creditor, has an interest in finality after the panel affirmed the judgment without a remand.

Administrative efficiency also favors issuance. There will be no certiorari petition on Blue Ember's behalf, and Granite Heron has not shown an appealable grievance of its own. Staying mandate would postpone district authority without reducing any genuine risk of conflicting proceedings.

Blue Ember does not ask this Court to accelerate mandate before July 30. A July 29 denial would otherwise make August 5 the later default date under Rule 41(b), seven days after the order. The rule permits the Court to shorten that interval by order, and the completed presentation plus Blue Ember's definitive disclaimer supplies reason to restore the date calculated before the motion.

The merits and branch boundary remain unchanged

The July 9 counterfactual judgment has two components: affirmance of mitigation JMOL and affirmance of the December 15, 2025 amended judgment. The conditional Rule 59 ruling remains legally present but dormant because JMOL still controls. No retrial or remand follows from that branch disposition.

Denial of a mandate stay would not express a new view about whether the Cobalt Finch evidence compelled the deduction. It would not endorse or reject the possible certiorari question. The only determination needed is that the filed motion fails to show a substantial petition and good cause on the present facts.

The Court should also preserve strict source isolation. Neither this response nor the motion changes the actual causation-only Rule 50(a) filings. Neither can affect the actual appellate judgment, which followed a different preservation analysis and remedy. Every operative reference here is to docket SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED.

The denial path is self-contained. No filing or order from a route in which a stay might be granted is incorporated, assumed, or negated. The Court can deny this particular request and allow ordinary mandate without making any statement about how different facts would be treated.

Conclusion and certification

Blue Ember respectfully requests denial. Granite Heron prevailed in the branch appeal, identifies no adverse ruling it will ask the Supreme Court to review, and relies entirely on speculation that Blue Ember might petition. Blue Ember now confirms that it will not. The motion therefore presents neither a substantial certiorari petition nor good cause for withholding mandate.

The clerk should issue on July 30, the date originally calculated from the July 23 expiration of the rehearing period. If the Court denies the motion on July 29, the denial should state that the merits judgment remains unchanged and expressly shorten the otherwise applicable post-denial interval to permit issuance the following day.

Maya Holt signs for Blue Ember Biologics, LLC, with Jonas Bell's authorization. Counsel certifies electronic service on Eli Mercer and Tara Webb on July 28, 2026. No sealed matter, personal identifier, or source outside the isolated branch is included.

Both warnings at the beginning of this response control its use. The filing never occurred, does not alter the district record, and cannot be cited as evidence that Blue Ember disclaimed Supreme Court review in the actual matter or in any other counterfactual path.